

21SMCV01950 21SMCV01950

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-09-18

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Case Number: 21SMCV01950 Hearing Date: September 18, 2026 Dept: N

TENTATIVE RULING

Defendant William S. Jensen's Motion for Attorney's Fees is continued to TBD. Defendant to submit a supplemental declaration within 10 days providing (1) the total number of hours spent on the matter and (2) a table detailing the number of hours spent by each timekeeper, their hourly rate and the total amount of fees attributable to each timekeeper.

REASONING

Defendant Jensen moves for attorney's fees pursuant to Civil Code section 1717, Code of Civil Procedure sections 1021, 1032 and the Vacant Land Purchase Agreement and Joint Escrow Instructions ("Purchase Agreement"). The Court granted Defendant Jensen's motion for summary judgment of Plaintiff's complaint for breach of contract and negligence on May 12, 2026. Defendant Jensen moves for fees pursuant to paragraph 31 of the Purchase Agreement. Defendant Jensen requests fees in the amount of \$58,340.34 against Thompson, which includes \$57,591.25 in attorney's fees and \$749.09 in costs.

It is axiomatic that a party is permitted to recover reasonable attorney fees, when authorized by contract, statute, or law, pursuant to Code of Civil Procedure section 1033.5, subdivision (a)(10)(A)-(C). Plaintiff Thompson sued Defendant Jensen for breach of the Purchase Agreement. The Purchase Agreement contains an attorney's fees clause:

"In any action, proceeding, or arbitration between Buyer and Seller arising out of this Agreement, the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 28A." (Snyder Dec., ¶2, Ex. 1.)

Defendant Jensen is the undisputed prevailing party in this action, because he prevailed on his motion for summary judgment of Plaintiff's complaint on April 2, 2026. (Snyder Dec., ¶5, Ex. 2.) Judgment was entered on Thompson's complaint on May 12, 2026. (Id.) Jensen is the prevailing party on Thompson's action arising out of the Purchase Agreement and entitled to recovery of fees.

The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Margolin v. Reg'l Planning Comm'n (1982) 134 Cal.App.3d 999, 1004.)

Defendant has provided detailed billings sheets with the motion describing the work performed. (Snyder Dec., ¶¶13 and 18, Ex. 3.) Defense counsel attests to an hourly rate of \$475/hr for counsel's services and an hourly rate of \$150/hr for the

services of legal assistants Oliver and Varley. Defense counsel does not provide a total of the number of hours spent on the entire case. Because the invoices include services performed by Varley and Oliver, the number of hours cannot be determined by simply dividing the total fees requested by the \$475 hourly rate. If such a formula were applied, the number of hours spent on the case would be 122 hours.

Defendant is ordered to serve a supplemental declaration providing (1) the total number of hours spent on the matter and (2) a table detailing the number of hours spent by each timekeeper, their hourly rate and the total amount of fees attributable to each timekeeper. Defendant is to submit the supplemental declaration within 10 days. The hearing is continued to TBD so that Defendant can provide this supplemental declaration.